

25LBCV01339 25LBCV01339

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-25

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Case Number: 25LBCV01339 Hearing Date: June 25, 2026 Dept: S27

Defendant moves for summary judgment

on Plaintiff's complaint. Plaintiff

failed to timely file opposition papers.

Recently, in *Mandell-Brown v. Novo*

Nordisk Inc. (2025) 109 Cal.App.5th 478, 508, the Court of Appeals considered a

situation where a plaintiff failed to file an opposing separate statement prior

to the hearing on the defendant's motion.

The *Mandell-Brown* Court noted, "Thus, if a plaintiff opposing summary

judgment fails to file a separate statement, and the trial court reviews the

moving papers and concludes the motion is not deficient on its face, it has

discretion under subdivision (b)(3) to grant the motion, without first

undertaking a detailed analysis of the supporting evidence to determine if a

prima facie showing has been made as to one or more of the elements of each

claim."

The Court has reviewed the moving

papers and finds they are not deficient on their face. In light of the lack of opposition and an

opposing separate statement, the Court grants the motion.

Recently, in 24LBCV02791, the Court

admonished Plaintiff's attorney as follows:

The Court notes that there have

been numerous motions for summary judgment and/or adjudication filed by Honda

in various cases without opposition. The

Court asks Plaintiff's attorney to dismiss any case or cause of action the

plaintiff does not intend to pursue.

Requiring the Court to rule on unopposed motions is not an efficient use

of judicial resources.

Despite this admonishment,

Plaintiff has neither dismissed the action nor opposed the motion. Again, the motion is granted. Defendant is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative

as directed by the instructions provided on the court website at www.lacourt.org. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. If a party submits on

the tentative, the party's email must include the case number and must identify

the party submitting on the tentative. If

the parties do not submit on the tentative, they should arrange to appear

remotely.